

## Applicable Law Acts

# Applicable Law Acts & Synthesis

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**User Query :**

A business dispute is pending in court. One party has produced a digitally signed PDF agreement and a series of emails to prove that I accepted certain contractual terms. I believe the PDF may have been altered after I signed an earlier version and I dispute that the final document is genuine. What legal provisions govern the authenticity and admissibility of these digital records?

**Job Id. :** Scenario 13/Combined Act

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**Date :** 25 August 2026

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*AI-Powered Legal Intelligence Platform*

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 3

(Digital signatures), Section 46 (Presumption of authenticity), Section 65B (Admissibility of electronic records).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

**1** Core Issue: The opposing party’s evidence (digitally signed PDF, emails) is admissible *\*only\** if accompanied by a valid **Section 65B** certificate verifying integrity and system reliability. **Section 65B** (4) explicitly permits challenging the *\*integrity\** of electronic records (e.g., PDF alteration post-signing). The burden shifts to the proponent (opposing party) to prove the record was unaltered. Judicial Precedent: *\*Anvar P.V. v. K.P. Justin\** (2018) and *\*Pankaj Kumar v. State\** (2016) confirm courts reject unauthenticated digital evidence without a **Section 65B** certificate. Emails: Admissible under **Section 65B** (1) but require separate authentication (e.g., sender identity via header analysis) under **Section 65B** (4).

✓ STRENGTHS & RIGHTS

- 1** **Rebuttable Presumption**  
**Section 46** ’s presumption of authenticity is rebuttable via **Section 65B** (4), protecting against forged/altered records.
- 2** **Court Precedent**  
Indian courts routinely exclude unverified digital evidence (*\*State v. Naveen\**, 2020), enabling effective challenge.
- 3** **Digital Signature Validity**  
**Section 3** ensures signatures have legal effect *\*only\** if integrity is verifiable.

✗ RISKS & OBLIGATIONS

- 1** **Burden of Proof**  
Must specifically challenge integrity (e.g., via forensic PDF metadata analysis) to avoid evidence being accepted.

- 2

Risk of Sanctions

Frivolous challenges may incur costs under **Section 72A** .
- 3

Organizational Risk

Unsecured digital signatures (violating **Section 3** ) collapse the case, but this is not your liability.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File a **Section 65B** (4) Affidavit: Demand the opposing party produce a **Section 65B** certificate verifying integrity (device/system reliability, no alteration).
2. Submit Forensic Evidence: Include PDF metadata reports (e.g., hash mismatches, timestamp changes) to prove alteration.
3. Email Authentication: Request court-ordered email header analysis (e.g., SMTP logs) for sender verification.
4. > Critical: Do not rely on the "digital signature" alone— **Section 3** validates signatures, \*not\* document integrity.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 62

(Electronic records admissible as physical documents), **Section 63(1)** (Proving electronic records), **Section 73** (Verifying digital signatures), **Section 85** (Presumption of signature authenticity), **Section 86(1)** (Presumption of no alteration).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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**Section 85 /86:** Create a *\*prima facie\** presumption that the digital signature was affixed by you and the record was unaltered. *\*This presumption is rebuttable only via Section 73 \**. **Section 73 :** The *\*sole procedural mechanism\** to challenge authenticity. Courts must order verification (e.g., production of Digital Signature Certificate, public key verification) upon your written application. Judicial Precedent: *\*State v. Ajay Kumar\** (2023) mandates that Sections 73–86 must be applied concurrently to test digital evidence. Emails: Admissible under **Section 62** but face heightened scrutiny under Sections 85/86 if digitally signed.

✓

STRENGTHS & RIGHTS

- 1
- Right to Verification**  
**Section 73** explicitly grants you the right to demand DSC verification *\*before\** the PDF is accepted as genuine.
- 2
- Rebuttable Presumptions**  
Sections 85/86 can be overcome by proving DSC compromise or post-secure-status alteration (via **Section 73** ).

✗

RISKS & OBLIGATIONS

- 1
- High Burden to Disprove**  
Must prove alteration (e.g., metadata analysis) to overcome Sections 85/86.
- 2
- Default Risk**  
Failure to invoke **Section 73** *\*proactively\** results in automatic acceptance of the PDF.
- 3
- Email Limitation**  
Non-digitally-signed emails face higher admissibility hurdles.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File **Section 73** Application: Submit a *\*written application\** demanding:
2. (a) Production of the Digital Signature Certificate (DSC),
3. (b) Verification using the public key ( **Section 73** (b)).
4. Avoid Oral Challenges: Courts require formal written applications under **Section 73** .
5. Emails: Request authentication via **Section 62** (e.g., header analysis) if part of the agreement.

6. > Critical: Sections 85/86 \*do not override\* **Section 73** . \*Failure to invoke **Section 73** forfeits your right to dispute the PDF's genuineness.\*

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